DIVISION BENCH ITEM NO.111

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA No.28/2023 IN CP(CAA)No.05/ALD/2023 IN CA (CAA)No.9/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 26th February, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**EPACK COMPONENTS PVT.LTD.WITH EPACK DURABLE PVT.LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Saurabh Khanna, Adv. *: For Petitioners/ Applicant in CA No.28/2023*
Sh. Gaurav Mahajan, Sr. S.C. *: For the I.T. Department*
NONE *: For the OL*
NONE *: For the ROC*

ORDER

Ld. Counsel representing the Petitioners is present through VC and the Ld. Sr. Standing Counsel representing the Income Tax Department is present physically.

1. After arguing for some time, the Ld. Counsel representing the Petitioners seeks and is granted one week time to file an affidavit with respect to the report of the Income Tax Department dated 29.11.2023, where the observations have been made by the Income Tax Department that this amalgamation petition may be deferred till completion of the Income Tax proceedings, which are stated to be completed on or before the 31.03.2024.

2. Let the affidavit be filed within the aforesaid stipulated period by serving an advance copy to the Ld. Counsel representing the Income Tax Department.

3. The matter is adjourned for further hearing on 21st March, 2024.

-Sd- ***-Sd-***
(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

26th February, 2024
Kavya Prakash Srivastava
(Stenographer)